

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

INTERNATIONAL LONGSHOREMEN'S ASSOCIATION,
Complainant

v.

GATEWAY TERMINALS, LLC; CHARLESTON STEVEDORING
CO., LLC; PORTS AMERICA FLORIDA, INC.; CERES MARINE
TERMINALS, INC.; AND SSA ATLANTIC, LLC, *Respondents*.

DOCKET NO. 22-12

Served: June 20, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON RESPONDENTS' MOTION FOR LEAVE TO SUPPLEMENT RECORD AND REQUEST TO EXTEND SCHEDULE FOR COMPLAINANT TO FILE REPLY

On June 13, 2023, Respondents filed a Motion for Leave to Supplement Record ("Motion to Supplement"), seeking leave to supplement the record with a declaration "provided by the South Carolina Port Authority ("SCPA"), a non-party with first-hand knowledge of key factual matters currently at issue in this phase of the proceeding." Motion to Supplement at 1. Respondents' motion was filed 8-days after they filed their opposition brief which included declarations and other evidence in support. Respondents assert that the declaration was received on June 10, 2023, and it "does not represent a new legal argument or theory, but is factual information that bears on arguments made in Respondents' reply brief..." *Id.* at 2. Respondents further assert in support of the motion that it will serve to clarify "disputed issues of fact," it is only 10-pages long so it will not impose any undue burden, SCPA could not provide the declaration earlier because of "the resource demands of ongoing complex litigation in recent weeks," and it is "submitted well before Complainant's deadline for its reply" so Complainant would have ample opportunity to respond. *Id.* Finally, Respondents indicate that Complainant consents to the motion "provided that Complainant is afforded one week of additional time (to June 27, 2023) to prepare its responsive brief," to which Respondents have no objection. *Id.* at 3.

Complainant indicated by electronic mail that it will not file any opposition to the motion, and it consents to the filing of the declaration if it receives the extension to file its reply brief.

The supplemental evidence will be admitted because it addresses the operation of the terminals for the South Carolina Port Authority. A similar declaration made on behalf of the Georgia Ports Authority was provided in a timely manner and addresses the operation of the Georgia terminals. The operation of the terminals in both states is integral to the determination

of jurisdiction, as noted in the March 2023 Order on Motion to Bifurcate Proceeding, Scheduling Order, and Protective Order (“Order to Bifurcate”). Order to Bifurcate at 4:

While the OGC Letter is of interest in this matter...evidence regarding how the terminals actually operate is more probative of the issue than how they were represented to operate in whatever documents were presented in 2019. Affidavits or declarations from individuals who work(ed) at the terminals at the two ports during the relevant times, along with documents that show how the terminals operate, would be more instructive in determining whether any of Respondents are MTSs subject to the jurisdiction of the FMC.

As requested, Complainant will be provided additional time to respond. The briefing schedule was extended by orders on motion to amend dated March 17, 2023, and again on May 10, 2023, and the parties were warned in the latter order that “no further extension requests will be permitted for the jurisdictional phase of this proceeding.” Order on Second Motion to Amend Schedule at 2. That admonition did not contemplate pertinent supplemental evidence being proffered, and for the sake of due process for both parties, an extension for Complainant to file its Reply Brief and adequately address the new evidence is warranted.

Good cause having been shown to supplement the record, Respondents’ Motion to Supplement is hereby **GRANTED**.

Complainant’s Reply Brief is due no later than June 27, 2023.



Linda S. Harris Crovella
Administrative Law Judge